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Abstract:

This is a third in an annual series of articles reviewing the "reports" (decisions) of the Appellate Body, the highest judicial entity of the World Trade Organization. Since its inception in 1995, the Appellate Body has issued more than fifty reports, currently at a rate of eight or nine per year. These reports, applying and interpreting various provisions of the General Agreement on Tariffs and Trade and the other WTO agreements, are perhaps the most significant single source of WTO jurisprudence. The authors' intention is to provide a comprehensive, critical summary of each of the reports as a useful and reliable record of case law.